

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR JULY 2, 2026, AT 8:30 A.M.

Plaintiff thereafter meets his burden to raise a triable issue of material fact as to whether defendant Defender Tree Service, LLC was defendants' independent contractor or employee such that the *Privette* doctrine does not apply. (Disputed UMF Nos. 5–6, 12; Additional UMF Nos. 3–5, 7–10.) Specifically, plaintiff presents evidence that defendant Defender Tree Service, LLC's contractor's license was suspended before, during, and after the incident giving rise to the litigation. In other words, defendant Defender Tree Service, LLC was required to have a contractor's license for the tree service performed on defendants' property pursuant to Business and Professions Code, section 7026.1, yet its license was suspended and therefore invalid, and the presumption in Labor Code section 2750.5 is that defendant Defender Tree Service, LLC was defendants' employee so the *Privette* doctrine is inapplicable.

Defendants' citation to *Chin v. Namvar* (2008) 166 Cal.App.4th 994 for the proposition that plaintiff is estopped from rebutting the presumption in Labor Code section 2750.5 is unavailing because the case stands for the proposition that defendant Defender Tree Services, LLC—as the one who represented itself as a licensed contractor—is estopped from asserting that its unlicensed status makes it an employee pursuant to Labor Code section 2750.5 not plaintiff who did not represent himself as a licensed contractor.

Accordingly, defendants' motion for summary adjudication is denied as to the negligence and premises liability causes of action and, therefore, their motion for summary judgment is denied.

9. S-CV-0053276 SANCHEZ, JOSE v. D & D CABINETS – SAVAGE

Mediation Status Conference

The mediation status conference is dropped from calendar in light of the parties joint mediation status conference statement filed with the court on June 16, 2026, that includes all the information required by the court.

10. S-CV-0053328 LAFAYETTE FEDERAL CREDIT v. BRATCHER, IRMA

Plaintiff's Motion to Enter Judgment Pursuant to CCP § 664.6

Plaintiff's unopposed motion is granted. (Code Civ. Proc., § 664.6.) Judgment shall be entered in favor of plaintiff and against defendant in the amount of \$33,565.96 in